



File No.: EXP202305556

SANCTION PROCEDURE RESOLUTION

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On April 13, 2023, a complaint was filed with the Spanish Agency for Data Protection. The complaint is directed against A.A.A.

The reasons for the complaint are as follows:

The complainant states that A.A.A. (identified at that time as the respondent) has installed three surveillance cameras at (...) at ***ADDRESS.1. It points out that the cameras capture images of the public road and the entrance of their partner's business. It also indicates that the aforementioned cameras are not properly signposted and do not warn passersby of their existence.

Along with the complaint, photographs dated April 5, 2023, are provided, showing the existence of at least three surveillance cameras oriented towards the public road.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), on May 22, 2023, the complaint was forwarded to A.A.A. for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on June 12, 2023, as recorded in the acknowledgment of receipt in the file.

On June 22, 2023, a written response to the forwarding action was received by this Agency. In it, A.A.A. identifies the company BALLESTE, S.L., with NIF B73776270, as responsible for the surveillance system, and confirms that the number of cameras in the system is three, although only two are active. Additionally, they provide photographs showing the field of vision of the three cameras and the recorded area, which is the access area to the apartments. The photographs indicate excessive capture of the public road.

The entity now identified as the respondent (the legal entity BALLESTE, S.L., hereinafter the respondent) also states that there are signs on all doors indicating that it is a monitored area, and that the duration of the recording is one week.

THIRD: On June 23, 2023, in light of the response provided by the respondent, the Agency made a request for additional information. It was noted that, after analyzing the documentation provided on June 22, 2023, it was observed that the orientation of the three cameras might not comply with data protection regulations as it involved excessive capture of the public road (sidewalk, roadway, and parked vehicles, among others).

Therefore, the respondent was requested to provide new images of the cameras' field of vision, indicating that, in some cases, simply reorienting them or introducing privacy masks would suffice. It was also requested that clear photographs of the informative signs of the surveillance system be provided.

On July 4, 2023, a response from the respondent was received regarding the request for additional information, providing two photographs of the field of vision of the cameras in operation dated June 26, 2023. In these, the sidewalk and parked vehicles on the public road are observed. Additionally, photographs of an informative sign identifying the responsible party were attached.

FOURTH: On July 4, 2023, a new request for additional information was sent, requesting new photographs of the cameras' field of vision, as the ones sent to date indicated that the field of vision might not comply with data protection regulations, as the capture of the public road was still excessive. On July 18, 2023, a response from the respondent was received. In it, they reiterated that only two cameras are operational. For this purpose, they presented a screenshot of the management device of the surveillance system showing that "camera 3" is offline.

They also provided photographs of the field of vision of the remaining two cameras dated July 18,

2023, in which excessive capture of the public road is still observed.

FIFTH: On July 13, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

SIXTH: On August 1, 2023, November 7, 2023, and November 11, 2024, the complainant submitted new writings reiterating the content of their complaint and asserting that the cameras continued to be operational.

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SEVENTH: According to the report gathered from the AXESOR tool, the entity BALLESE, S.L is a microenterprise established in 2012, with two employees, and a turnover of 212,500 euros in 2022.

EIGHTH: On December 20, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the accused party for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

NINTH: The notification of the aforementioned initiation agreement, which was carried out on 20/12/2024 in accordance with the regulations established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) through electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on 31/01/2025, as stated in the certificate in the file.

There are no allegations against the initiation agreement.

In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement of the GDPR attributed to the accused party, and the sanction that could be imposed. Therefore, considering that the accused party has not made any allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the following facts are considered proven by the Spanish Agency for Data Protection in this procedure,

PROVEN FACTS

FIRST: There is a video surveillance system on the facade of a building located at ***ADDRESS.1.

SECOND: The video surveillance system consists of 3 cameras, of which only two are operational and excessively capture the public thoroughfare.

THIRD: The responsible party for the video surveillance system is the company BALLESE, S.L.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation.

Article 4.2 of the GDPR defines the concept of "processing" of personal data, stating:

“processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, restriction, erasure or destruction;” Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (image of individuals) carried out through the reported video surveillance system complies with the provisions of the GDPR.

III

Infringement of Article 5.1 c) GDPR

Article 5.1 c) GDPR states the following: Personal data shall be:

“adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).”

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of safeguarding the security of individuals and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of

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data minimization as contained in Article 5.1(c) of the GDPR, which states that personal data shall be “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed.”

This means that in a specific processing activity, only the relevant personal data that is pertinent and strictly necessary for fulfilling the purpose for which it is processed may be processed. The processing must be appropriate and proportional to the intended purpose. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the data minimization principle in the context of video surveillance implies that images of public roads cannot be captured, as the processing of images in public places can only be carried out by the Security Forces and Bodies with prior governmental authorization.

In some cases, to protect private spaces where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the security purpose.

That is to say, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, particularly not affecting surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not capture images of third-party private spaces and/or public spaces without duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the aim of intimidating them or affecting their private sphere without justified cause is not permitted.

Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners or, where applicable, of the persons present in those spaces.

In this case, the respondent is responsible for three cameras installed on the facade of a building located at ***ADDRESS.1, directed towards the public road from which they excessively capture images.

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Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of preserving the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

“Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means.”

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, as already indicated.

4.- The images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

5.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section “Reports and resolutions” / “regulations”),

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the “Guides and tools” section).

It is also of interest, in the case of conducting low-risk data processing, the free tool Facilita (in the “Guides and tools” section), which, through

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specific questions, allows for the assessment of the situation of the responsible party regarding the processing of personal data they carry out, and if applicable, generates various documents, informative and contractual clauses, as well as an annex with minimum considered indicative security measures.

Qualification and classification of the infringement of Article 5.1.c) of the GDPR

In accordance with the available evidence, it is considered that the facts presented violate the provisions established in Article 5.1.c) of the GDPR, which constitutes an infringement classified under Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...).”

For the purposes of the statute of limitations for infringements, the infringement indicated in the

previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...).”

VI

Sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and detriment they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and detriment suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have applied in accordance with Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, in that case, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD states:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.

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- c) The benefits obtained as a consequence of the commission of the infringement.

- d) The possibility that the conduct of the affected party could have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) To have, when not mandatory, a data protection officer.
- h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

In the present case, considering the seriousness of the possible infringement, especially taking into account the consequences that its commission provokes, the imposition of a fine is warranted, in addition to the adoption of measures.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. To ensure these principles, the turnover of BALLESTE, S.L. of 212,500 euros in the year 2022 is considered as a preliminary factor.

The balance of the circumstances contemplated in Article 83.2 of the GDPR, regarding the infringement committed by violating Article 5.1.c) of the GDPR, allows for the setting of a sanction of 500 euros.

It should be noted that the voluntary payment of the sanction does not exempt from proving the regularization of the video surveillance system in accordance with the current regulations.

VII

Corrective Measures

Once the infringement is confirmed, it is agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”.

In this case, this Agency requires the responsible party to, within one month:

- Prove that they have proceeded to reorient the cameras, so as to avoid excessive capture of public space. In the event that even with the reorientation, the capture of public space continues to be excessive, they must prove the incorporation of privacy masks into the current system or, failing that, the removal of the video surveillance system.

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The imposition of these measures is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the orders for measures from this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

VIII

Conclusion

Therefore, in accordance with the applicable legislation and evaluated the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on BALLESTE, S.L, with NIF B73776270, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, a fine of 500.00 euros (FIVE HUNDRED euros).

SECOND: TO ORDER BALLESTE, S.L, with NIF B73776270, that pursuant to Article 58.2.d) of the

GDPR, within one month from the date this resolution becomes final and enforceable, to prove that they have proceeded to comply with the reorientation of the cameras, so as to avoid excessive capture of public space. In the event that even with the reorientation, the capture of public space continues to be excessive, they must prove the incorporation of privacy masks into the current system or, failing that, the removal of the video surveillance system.

THIRD: TO NOTIFY this resolution to BALLESTE, S.L.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed during the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the period for making the payment...

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The voluntary payment deadline will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, both inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency does not become aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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